

436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure section 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Analysis

Attorneys' Fees

Pro per litigants are not entitled to recover attorney's fees. (*Trope v. Katz* (1995) 11 Cal.4th 274, 292.)

Defendant argues that Plaintiff prays for "reasonable attorney's fees and expenses to the extent authorized by statute." (Complaint, Prayer, ¶ 8.) Defendant posits that Plaintiff is proceeding in Pro Per and therefore has not incurred, and will not incur, attorney's fees.

However, Defendant cannot guarantee that Plaintiff will never incur attorneys' fees as Plaintiff can hire an attorney whenever he chooses.

Defendant secondly contends that Plaintiff has failed to plead either the existence of a statute which would provide for attorneys' fees or a contract.

The Complaint's First Cause of Action is brought in part under Civil Code section 5235 (Complaint ¶¶ 14, 17, 25), which governs a member's right to enforce inspection of association records. Section 5235 authorizes an award of reasonable costs and expenses, including reasonable attorneys' fees, to the prevailing member in such an enforcement action.

The Complaint does allege in its declaratory relief cause of action a situation where Civil Code section 5235 applies.

Conclusion

For the reasons analyzed above, the Motion to Strike is **DENIED** in its entirety

15. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
- CONTINUED FROM 8/17/26
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Defendant Reflections Maintenance Association's Demurrer to Plaintiff's Complaint filed on March 27, 2026. The Demurrer challenges the first and second causes of action for declaratory relief and injunctive relief.

For the reasons explained below, Defendant Reflections Maintenance Association's Demurrer to Plaintiff's first cause of action for declaratory relief is **OVERRULED**. The Demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND** as to the second cause of action for injunctive relief.

Meet and Confer Requirement

Defendant satisfies its meet and confer requirements in detailing its efforts in reaching out and speaking to Plaintiff's counsel via telephone on April 14, 2026, but the parties were unable to resolve the outstanding issues. (Gahan Decl. ¶ 2.)

Factual Allegations

The verified Complaint alleges as follows.

Plaintiff alleges that he owns Unit 22 within the RMA's condominiums in San Ramon, California. (Declaration of Jacob D. Colvin ("Colvin Decl."), Exhibit 1, Complaint, ¶¶ 1, 6.)

This instant "dispute arises from a special assessment," whereby the RMA sought collections including late fees and collection charges, and "threatened escalation against Plaintiff's account and property." (Complaint, ¶ 9.) The dispute also includes "related collection conduct." (Id.)

Since 2025, Plaintiff alleges that he "repeatedly requested inspection and review of election-related materials and related association records" to ascertain whether the special assessment was lawfully approved, whether voting and tally were valid, and "what charges were actually authorized." (Complaint, ¶ 10.) The RMA "did not provide the requested inspection in the form requested." (Complaint, ¶ 12.) Plaintiff does not allege the RMA refused to provide records—only that records were not provided in the specific "form" Plaintiff demanded. (Id.)

Plaintiff also alleges that an itemized ledger sufficient to validate disputed charges or viewing the records was not provided. (Complaint, ¶ 12.) Again here, Plaintiff does not allege that the ledger ever existed but was not produced; he simply alleges it was not produced. (Id.)

Plaintiff also alleges that when he requested that the RMA provide election records in a lawful and reasonably accessible manner, yet RMA demanded \$135 per hour for management effort and \$150 per hour for inspections. (Complaint, ¶ 12.) Plaintiff alleges that these "management or inspection fees" were improper." (Complaint, ¶ 26.)

Plaintiff finally alleges that while he has not received a pre-lien notice, he "believes [the RMA] may nevertheless contend that collection may continue or that pre-lien or lien steps(sic) may be taken." (Complaint, ¶ 20.) Plaintiff also raises concern that the RMA may take "pre lien, lien, foreclosure-related, or other collection-enforcement step on the disputed amounts." (Complaint, ¶ 25.)

Plaintiff and RMA completed internal dispute resolution though no agreement was reached. (Complaint, ¶ 21.) Plaintiff has since requested that collections be placed on hold and an inspection of election materials be arranged. (Id.) As a result of the ongoing dispute, he is now "at risk of additional late fees, collection fees, attorney's fees, lien-related action, foreclosure-related action, title cloud, and continuing coercive pressure before the underlying election and record-inspection dispute is resolved."

Legal Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

First Cause of Action for Declaratory Relief

A complaint for declaratory relief must demonstrate: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party. (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.) The “proper subjects” of declaratory relief are set forth in Code of Civil Procedure section 1060 and other statutes. (Id.) The “actual controversy” language in Code of Civil Procedure section 1060 “encompasses a probable future controversy relating to the legal rights and duties of the parties” but “does not embrace controversies that are conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court.” (*Lee v. Silveira* (2016) 6 Cal.App.5th 527.) An actual controversy must be “one which admits of definitive and conclusive relief by judgment within the field of judicial administration, as distinguished from an advisory opinion upon a particular or hypothetical state of facts.” (*Monterey Coastkeeper v. Central Coast Regional Water Quality Control Board* (2022) 76 Cal.App.5th 1.)

The fundamental basis of declaratory relief is “an actual, present controversy” (*In re Claudia E.* (2008) 163 Cal.App.4th 627.) Courts have emphasized that “the judgment must decree, not suggest, what the parties may or may not do.” (*Sanctity of Human Life Network v. California Highway Patrol* (2003) 105 Cal.App.4th 858.) This requirement prevents courts from issuing purely advisory opinions on hypothetical situations. (Id.)

In addition, when claims are based on mere fear or apprehension rather than concrete facts, courts find them unripe. In one case, a plaintiff’s assertion of entitlement to declaratory relief to ensure no future violations was rejected as “pure speculation, which is insufficient to support declaratory relief.” (*Artus v. Gramercy Towers Condominium Assn.* (2018) 19 Cal.App.5th 923.) The court emphasized that suggesting future events “could violate” the law, without more, does not satisfy the actual controversy requirement (Id.)

Here, Plaintiff cites multiple statutes arguing that he was denied access and inspection of election records, was unlawfully charged for the inspection of election records, and was not provided mandatory notice prior to recording a lien as grounds for his declaratory relief cause of action. To overcome a demurrer, Plaintiff must only show he has properly pled a proper claim for declaratory relief as to one of the stated grounds.

Charges for Inspection of Records

“Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, or with respect to the location of the natural channel of a watercourse, may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.” (Code Civ. Proc. § 1060.)

This is a proper subject of declaratory relief because Plaintiff is seeking adjudication of legal rights or obligations of the parties, namely the rights of the parties as it pertains to the billing of hourly charges for inspection of voting records.

This is an actual controversy because Plaintiff alleges that the RMA “did not provide a lawful basis for

imposing generic hourly charges such as approximately \$135 per hour for management effort and approximately \$150 per hour for inspector effort as a condition of election-related inspection” in violation of Civil Code section 5205. (Complaint, ¶ 12.)

Defendant argues the critical distinction is that statutory restrictions on fees apply only to associations themselves, not to their vendors or management companies. Defendant cites to *Brown v. Professional Community Management, Inc.* (2005) 127 Cal.App.4th 532, where the court held that Section 1366.1 (now Section 56001) “by its terms applied only to associations, and did not limit fees of associations’ vendors such as property managers.”

The Complaint alleges that Civil Code section 5205 does not authorize the Association to impose general hourly review, management, or inspector charges as a condition of allowing inspection of ordinary association records. (Complaint, ¶ 13.)

This situation is different than the one in *Brown* because the plaintiff in *Brown* alleged and sued the homeowner’s association **and** management company over wrongful hourly fees, and in this instance, Plaintiff alleges and is only suing his homeowner’s association over wrongful hourly fees pursuant to Civil Code section 5205.

Plaintiff has successfully alleged a declaratory relief cause of action on the grounds that unlawful hourly rates were charged by Defendant to inspect the voting records. (Complaint, ¶¶ 12-13.)

Second Cause of Action for Injunctive Relief

Injunctive relief is a remedy, not a cause of action. (*Roberts v. Los Angeles County Bar Assn.* (2003) 105 Cal.App.4th 604, 618.) A cause of action must exist before a court may grant a request for injunctive relief. (*County of Del Norte v. City of Crescent City* (1999) 71 Cal.App.4th 965, 973.); *City of South Pasadena v. Department of Transportation* (1994) 29 Cal.App.4th 1280, 1293 [A permanent injunction is merely a remedy for a proven cause of action. It may not be issued if the underlying cause of action is not established.].)

Although an order sustaining a demurrer is proper because injunctive relief is not a cause of action, Plaintiff may still obtain injunctive relief if they prevail on a cause of action. (*Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 65-66.)

Conclusion

For the reasons analyzed above, Defendant Reflections Maintenance Association’s Demurrer to Plaintiff’s first cause of action for declaratory relief is **OVERRULED**. The Demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND** as to the second cause of action for injunctive relief.

16. 9:00 AM CASE NUMBER: MSC21-01176
CASE NAME: VAUGHNS VS MUSUKULA
STRIKE OR TAX COSTS
FILED BY: VAUGHNS, THOMAS
TENTATIVE RULING:

CONTINUED to January 4, 2027, pursuant to the Stipulation and Order entered September 18, 2026.